



Tribunals Ontario
Landlord and Tenant Board

The Landlord's Right of Entry into a Rental Unit

Interpretation Guideline 19

(Disponible en français)

Interpretation Guidelines are intended to assist the parties in understanding the Board's usual interpretation of the law, to provide guidance to Members and promote consistency in decision-making. However, a Member is not required to follow a Guideline and may make a different decision depending on the facts of the case.

A tenant has the right to possession and reasonable enjoyment of the rental unit. A landlord has the right to enter the rental unit in certain circumstances when the landlord follows the procedures set out in the *Residential Tenancies Act, 2006* (the "RTA").

Legislation

Sections 26 and 27 of the RTA describe the situations in which a landlord may enter the rental unit.

Entry without notice

Section 26 provides that a landlord may enter the rental unit without notice:

- in cases of emergency;
- If the tenant consents to the landlord entering the unit at the time the landlord enters;
- where the tenancy agreement requires the landlord to clean the rental unit at regular intervals, the landlord may enter at the times specified in the agreement, or, if no times are specified, between 8:00 a.m. and 8:00 p.m.; and
- if the landlord and the tenant have agreed the tenancy will be terminated or one of them has given notice of termination to the other, the landlord may enter the unit to show it to prospective tenants between 8 a.m. and 8 p.m. and, before entering, the landlord informs or makes a reasonable effort to inform the tenant of the landlord's intention to enter. A landlord must make reasonable efforts, depending upon the facts and circumstances of each case, to give the tenant advance notice in order to permit the tenant to be prepared for entry into the unit by the landlord to show the unit to prospective tenants.

A landlord may not enter the rental unit without notice to perform repairs even where the tenant has requested the repairs unless the landlord obtains the tenant's consent to enter the unit at the time the landlord goes to the unit to make the repairs.

Entry with notice

Section 27 provides that a landlord may enter a rental unit in accordance with written notice given to the tenant at least 24 hours before the time of entry in the following circumstances:

- to carry out a repair or replacement or to do work in the unit;
- to allow a potential mortgagee or insurer of the residential complex to view the rental unit;
- to allow a person who holds a certificate of authorization within the meaning of the *Professional Engineers Act* or a certificate of practice within the meaning of the *Architects Act* or another qualified person to make a physical inspection of the rental unit to satisfy a requirement imposed under subsection 9 (4) of the *Condominium Act, 1998*;
- to carry out an inspection of the rental unit, if,
 - i. the inspection is for the purpose of determining whether or not the rental unit is in a good state of repair and fit for habitation and complies with health, safety, housing and maintenance standards, consistent with the landlord's obligations under subsection 20(1) or section 161 of the *RTA*; and
 - ii. it is reasonable to carry out the inspection.
- for any other reasonable reason for entry set out in the tenancy agreement.

In addition, s. 27(2) of the *RTA* provides that the landlord, or, with the landlord's written authorization, a broker or salesperson registered under the *Real Estate and Business Brokers Act, 2002*, may enter a rental unit provided that they have given written notice to the tenant at least 24 hours before they enter to allow a potential purchaser to view the unit.

In any case where at least 24 hours written notice has been given to the tenant, the written notice must set out:

- the reason for entry;
- the date the landlord will enter; and
- the time of entry between 8:00 a.m. and 8:00 p.m.

Reason for entry

The entry must be for one of the reasons set out in section 27, described above.

The notice should provide as many details as possible with respect to the proposed entry, including details with respect to the repair or replacement or with respect to an inspection of the rental unit. In considering whether or not the notice complies with the *RTA*, the Board may consider whether details about the entry have been provided to the tenant.

Who may enter

The *RTA* gives a landlord the right to enter. A landlord's agent, for example, a superintendent or a person hired by the landlord, may also enter the rental unit on behalf of a landlord.

Where someone other than the landlord or the superintendent has been hired to do work in the unit, the landlord or the superintendent should attend with the hired person to permit entry into the unit by the person.

Specifying the time of entry

Where a specific time of entry is known, it should be stated in the notice. Where it is not possible to state a specific time of entry, the notice may provide a reasonable window of time for entry.

What is a reasonable window of time will depend upon the facts and circumstances in each case. Where the

landlord exercises control over the work being done and who is doing the work, the notice should be reasonably specific with respect to the time for entry. Where the landlord does not exercise control over the work being done or the person who is doing the work, the notice should set out a reasonable window of time for entry.

For example, where the work is being done by a cable or telephone company and the company specifies a reasonable window of time when it will be at the rental unit, a landlord may reasonably specify that same window. Where the same or similar work is being done in a number of units on the same day, a reasonable window of time may be specified.

In determining whether the specified window of time is reasonable, consideration should be given to the type and complexity of repair, replacement or work being undertaken, the location of the work and the extent to which the entry affects the tenant's ability to use the rental unit.

The Divisional Court in *Wrona v. Toronto Community Housing Corporation* found that while a landlord is not required to specify the exact hour and minute of a required entry into a rental unit, a written notice providing for a nine hour period for entry to permit the landlord to carry out an annual inspection of smoke detector equipment does not comply with the requirements that the notice specify a time of entry between 8:00 a.m. and 8:00 p.m.

Frequency of entry

In carrying out repairs, replacements and other work, the landlord should make reasonable efforts to limit the frequency of entries to those actually necessary to accomplish the work.

The landlord should also make reasonable efforts to limit the frequency of entries in other circumstances allowed under section 27 of the RTA such as carrying out inspections of the rental unit.

If the Board determines that the landlord has made unnecessary or unreasonable entries into the rental unit, the Board may find that the landlord has interfered with or harassed the tenant or that the landlord has substantially interfered with the tenant's reasonable enjoyment of the rental unit or the residential complex.

Methods of service of the notice

The written notice by the landlord for entry into the rental unit may be given to the tenant in one of the methods for giving notice set out in section 191 of the RTA or Rule 3 of the Board's Rules of Practice.

Tenants' rights and responsibilities

A tenant may remain in the rental unit while the landlord exercises their right of entry. However, the landlord's right of entry can be exercised if the tenant is not in the rental unit at the time of entry.

A tenant has the right to deny entry to the landlord if the landlord has not met the requirements under the RTA relating to entry. A tenant does not have the right to deny entry simply because the time of entry is not convenient to the tenant. The tenant must:

- i. not interfere with the landlord's right of entry;
- ii. not interfere with the landlord and its agents; and
- iii. take whatever steps are necessary to provide access to rooms where the work is to occur, including safely restraining pets in the rental unit.